

CASE NO. 2024 CC 1035

Plaintiff(s) vs Defendant(s)

parties in possession

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nce, the Defendant(s) agrees to pay the

2. Payment of \$400.00 will be made on or before June 5, 2024; with \$200 paid on or before the fifth of July, August, September, October and November, 2024, until the sum of \$1400.00 is paid in full. Payment of \$200 per month will be made on or before June 20th, 2024, and by the 20th of the months of July, 2024 -January 2025 with a final payment of \$139.17 due by February 20, 2025, until the sum of \$1739.17 is paid in full. Prepayment of any of these amounts is permitted with no prepayment penalty.
3. Payments of the \$1400.00 shall be made by check or money order to Colonial Manor MHC Holdings LLC. and may be delivered to the manager. Payment(s) of the \$1739.17 shall be made through plaintiff's on-line portal.
4. Any additional conditions stated:

All funds deposited by defendants into the Court Registry shall be released to Plaintiff. Defendants agree to pay rent and utilities via Auto Pay. The rent shall be paid on or before the 5th of each month. The utilities shall be paid on or before the 20th of each month. Defendants shall not have the option of paying a late fee. If defendants fail to pay any sum due under this agreement or any rent or utilities that may come due in the future, plaintiff shall be entitled to an immediate default judgment of eviction by filing an affidavit of noncompliance without the need for a hearing. In addition to a judgment of eviction, plaintiff shall be entitled to all monies due under this settlement agreement and any rent and utilities then outstanding. Defendants agree to waive all defenses which may be applicable to contest such eviction. Deborah and Delmer Moore aver that no unknown parties are in possession of the unit, and indemnify plaintiff against any unknown parties that may be displaced by an eviction.

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6. If any signing by the parties is in an agency/corporate/representative capacity, that relationship shall be noted by that individual.

TIME IS OF THE ESSENCE IN THIS AGREEMENT

William Price 05 / 09 / 2024
Plaintiff Date

Plaintiff Date

Deborah Moore 05 / 09 / 2024
Defendant Date

Delmer Moore 05 / 09 / 2024
Defendant Date

APPROVED AND ORDERED this 13th day of May, 2024, at the
Courthouse/Judicial Center, in DeSoto, Manatee or Sarasota Counties, Florida.

B. Steels
County Court Judge